

Intentional Interference with Contractual Relations – 3<sup>rd</sup> Cause of Action:

The third cause of action is brought against “Does 11 to 25.” It is not asserted against Defendant directly, but as pointed out in Defendant’s Reply, the complaint alleges that Defendants (inclusive of all Does) acted as agents of each other. (Comp. ¶ 6). The allegations are entirely conclusory and do not include any facts. Plaintiff alleges Does knew of the contract between Plaintiff and Defendant, acted in a way to prevent performance or made performance expensive and difficult, and intended to disrupt the performance of the contract. (Comp. ¶¶34-37.) These allegations are insufficient and do not state a claim for intentional interference with contractual relations.

Goods and Services Rendered – 4<sup>th</sup> Cause of Action:

In order to prove entitlement to recovery under a theory of services rendered, a plaintiff must demonstrate: (1) the defendant requested that plaintiff perform services; (2) the plaintiff performed the requested services; (3) defendant has not paid for the services as requested; and (4) the reasonable value of the services delivered. (See CACI 371; *Ochs v. PacifiCare of California* (2004) 115 Cal.App.4th 782, 794.)

The Complaint simply restates these elements in a conclusory manner and does not allege any facts to support the claim. The Complaint alleges: (1) Defendant Berger requested, by words or conduct, Plaintiff perform services or deliver goods from the benefit of Defendant; (2) Plaintiff performed the services and delivered the goods as requested; (3) Defendant has not paid Plaintiff for the services or goods provided; and (4) the reasonable value of the goods and services provided are at least \$750,000. (Comp. ¶¶38-41.) There are no facts alleging what the goods or services to be delivered or performed were. Plaintiff does not provide any explanation or facts to support the \$750,000 figure alleged. The allegations are conclusory and not factual.

Defendant also brings a statute of limitations claim arguing the claim is barred under CCP §339. However, it is not clear from the Complaint that this claim is limited to a two-year statute of limitations for an oral contract under CCP §339. This is not a basis on which would sustain the demurrer.

Defendant’s Request for Judicial Notice GRANTED.

Defendant’s Demurrer to the 1<sup>st</sup>, 2<sup>nd</sup>, 3<sup>rd</sup> and 4<sup>th</sup> Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 20 days.

Case Management Conference remains set for 12.09.26.

3.

| CASE #      | CASE NAME                                                          | HEARING NAME                                                                                                 |
|-------------|--------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|
| CVPS2604326 | SONNENBLICK HOLDINGS, LLC VS H.N. AND FRANCES C. BERGER FOUNDATION | HEARING RE: MOTION TO STRIKE COMPLAINT OF SONNENBLICK HOLDINGS, LLC BY H.N. AND FRANCES C. BERGER FOUNDATION |

**Tentative Ruling:**

Defendant’s Motion to Strike is deemed MOOT.